

**IN THE COURT OF XXXI ADDITIONAL CITY CIVIL AND
SESSIONS JUDGE AT BENGALURU**

Dated this 17th day of March 2026

PRESENT : **SRI.VEDAMOORTHY B.S. B.A.(L), LL.B.**
XXXI Addl. City Civil & Sessions Judge, Bengaluru. (CCH-14)

Ex.No.1997/2023

DECREE HOLDER : Sri.A.M.Sudhakar (HUF).

V/s

JUDGMENT DEBTORS : M/s Magnus Health Care &
Research Centre Pvt. Ltd. &
others.

i.	Provision under which the application is filed	Order XXI Rule 64 R/w Section 151 of the Code of the Civil Procedure.
ii.	Relief sought for	To pass an order for sale of the immovable property attached in case vide order dated 19.07.2024.
iii.	The date on which the application is filed	15.10.2025
iv.	Number of the application	I.A.No.XVI
v.	The date on which the objections are filed by different opponents	28.10.2025
vi.	The date on which the orders were passed on the said application	17.03.2026

ORDERS ON I.A.No.XVI

The decree holder has filed I.A.No.XVI under Order XXI Rule 64 R/w Section 151 of the Code of the Civil Procedure to pass an order for sale of the immovable property attached in case vide order dated 19.07.2024.

2. In support of I.A.No.XVI, the decree holder has filed his affidavit.

3. Judgment debtor No.2 has filed objections to I.A.No.XVI praying to dismiss I.A.No.XVI. The learned Counsel for the decree holder has filed counter to the objections of judgment debtor No.2 on I.A.No.VI.

4. Heard the arguments of the learned Counsels for the decree holder and judgment debtor No.2 on I.A.No.XVI.

5. Perused the materials available on record.

6. The following point that has been arisen for my consideration:

Whether the decree holder has shown sufficient reason to pass an order for sale of the immovable property attached in case

vide order dated 19.07.2024 ? If so, what order?

7. My answer to the above point is in the Affirmative for the following:

REASONS

8. This execution petition is filed under Order XXI Rule 11(2) of the Code of Civil Procedure to execute the orders dated 02.12.2022 and 10.01.2023 on I.A.No.V passed in O.S.No.3028/2021. They are arrears of rent payable by the judgment debtors to the decree holder. The decree holder filed I.A.No.I under Order XXI Rule 54 of the Code of Civil Procedure for attachment of the application schedule property belongs to judgment debtor No.2. Vide order dated 19.07.2024, this Court passed an order allowing I.A.No.I and ordered to issue attachment warrant in respect of the petition schedule Item No.2 property prohibiting the judgment debtor from transferring or charging the property in any way as required under Order XXI Rule 54 of the Code of Civil Procedure. Challenging the said Order, judgment debtor No.2 filed W.P.No.21068/2025 before the

Hon'ble high Court of Karnataka. In the said proceedings, there is no stay on the aforesaid order.

9. Prima-facie it appears that there is no dispute with regard to the ownership of judgment debtor No.2 in respect of the petition schedule Item No.2 property attached in this case. The only contention of judgment debtor is there is charge on the said property in favour of IIFL Home Loan. It is not a ground not to sell the property attached in this case. The judgment debtors have not satisfied the decree amount. That itself is the satisfactory reason to pass an order for sale of the immovable property attached in case vide order dated 19.07.2024. For the above reasons, the decree holder has shown sufficient reason to pass an order for sale of the immovable property attached in case vide order dated 19.07.2024. Hence, I answer the above point in the Affirmative. In the result, I proceed to pass the following :

ORDERS

I.A.No.XVI filed by the decree
holder under Order XXI Rule 64 R/w

Section 151 of the Code of the Civil Procedure is hereby allowed.

No orders as to costs.

It is hereby ordered to sell the petition schedule Item No.2 property in the public auction in accordance with law and to pay the sale proceeds or any part thereof to the decree holder towards full and final satisfaction of the decree under execution.

(Typed by me in the laptop, printout taken, corrected and then pronounced by me in the open court today on this the 17th day of March 2026).

(VEDAMOORTHY B.S.)
XXXI Addl. City Civil & Sessions Judge,
Bengaluru.